

House Amendment to
Senate File 462

S-3146

1 Amend Senate File 462, as passed by the Senate, as follows:

2 1. Page 1, before line 1 by inserting:

3 <Section 1. Section 724.26, subsection 1, Code 2025, is
4 amended to read as follows:

5 1. a. A person who is convicted of a felony in a state or
6 federal court, or who is adjudicated delinquent on the basis
7 of conduct that would constitute a felony if committed by an
8 adult, and who knowingly has under the person's dominion and
9 control or possession, receives, or transports or causes to be
10 transported a firearm or offensive weapon is guilty of a ~~class~~
11 "D" felony the following:

12 (1) A class "D" felony for a first offense, with commitment
13 to the custody of the director of the department of corrections
14 for an indeterminate term not to exceed five years with a
15 mandatory minimum term of confinement of two years.

16 (2) A class "D" felony for a second offense, with commitment
17 to the custody of the director of the department of corrections
18 for an indeterminate term not to exceed five years with a
19 mandatory minimum term of confinement of four years.

20 (3) A class "C" felony for a third offense, with commitment
21 to the custody of the director of the department of corrections
22 for an indeterminate term not to exceed ten years with a
23 mandatory minimum term of confinement of seven years.

24 (4) A class "C" felony for a fourth or subsequent offense,
25 with commitment to the custody of the director of the
26 department of corrections for an indeterminate term not to
27 exceed ten years with a mandatory minimum term of confinement
28 of ten years.

29 b. The court shall not defer judgment or sentencing,
30 or suspend execution of any mandatory minimum sentence of
31 incarceration imposed by this subsection, except the court may
32 suspend execution of any sentence of incarceration imposed
33 under subparagraph (1) upon the recommendation of the county
34 attorney.

35 c. Earned time accrued by a person convicted under this

1 subsection shall not be applied to reduce any mandatory minimum
2 sentence imposed. Earned time accrued shall be credited
3 against the person's indeterminate term of incarceration, but
4 shall not reduce any mandatory minimum sentence imposed.>
5 2. Title page, line 1, after <relating to> by inserting
6 <weapons, including mandatory minimum sentences relating to the
7 control, possession, receipt, or transportation of a firearm or
8 offensive weapon by a felon, and>
9 3. Title page, line 3, after <order> by inserting <, and
10 providing penalties>
11 4. By renumbering as necessary.